

INTERNET CRIMES AGAINST CHILDREN

CALIFORNIA CASE DIGEST AND COMMENTARY

Compiled by

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CALIFORNIA CASE DIGEST AND COMMENTARY

Compiled By: San Diego County DDA Jeffery Dort, and DAG Robert Morgester, Assistance on applicable federal case law provided by the Child Exploitation and Obscenity Section of the United States Department of Justice.¹

1. SEARCH AND SEIZURE

1.1 Probable Cause

U.S. v. Jasorka (2nd Cir. 1998) 153 F.3d 58. Issuing magistrate did not look at the photos, but relied on the Customs Agent's opinion that the photos contained a lascivious display of the genitals. Court held that the agent's reliance on the magistrate's judicial determination authorizing the search was reasonable (relying on the authority of *Leon*, 468, U.S. 897 (1984)).

U.S. v. Brunette (1st Cir. 2001) 256 F.3d 14. Search warrant was not supported by probable cause because neither the magistrate judge nor the district court judge independently viewed the allegedly pornographic images and because the affidavit did not contain a detailed, factual description of the images. However, case was affirmed under *Leon* good faith exception.

See also, U.S. v. Crosby (D. Me. 2000) 106 F. Supp. 2d 53. (Although district court did not find that the search warrant was invalid because the magistrate judge failed to look at the child pornography pictures, the Court urged magistrate judges to look at the pictures described in a search warrant in order to avoid litigation).

See also, U.S. v. Getzel (D.N.H. 4/19/02) 196 F. Supp. 2d. 88. Warrant valid where affiant gave detailed description of all photos in his possession and attached one photo to the application to evidence the defendant as the adult depicted in all the photos. Here, court made an independent determination that photo attached was lascivious and then accepted detailed description of other photos as sufficient (Court also considered affiant's experience in child abuse investigations).

U.S. v. Long (6th Cir. 1994) 42 F.3d 1389 (unpublished decision). In contrast to *U.S. v. Weber*, 923 F.2d 1338 (9th Cir. 1990), agent in this case did not assert that "pedophiles" or "child pornography collectors" typically possess child porn in their homes, but that "persons having sexual interest in children" commonly collect child pornographic materials in places such as their homes.

¹ This digest will be periodically updated. The latest version can be obtained at the CDAA High Tech Committee web page located at <http://www.cdaa.org/members/index.htm>. We would appreciate any motions, cases, or other information relation to Internet child exploitation. Please contact Robert Morgester if you have any information for the digest at Robert.Morgester@doj.ca.gov or write to him c/o Office of the Attorney General, P. O. box 944255, Sacramento, CA 94244-2550. All material will be made available via <http://www.cdaa.org/members/index.htm>.

U.S. v. Compos, (9th Cir. 2000) 221 F.3d 1143. Defendant transmitted two images of child porn. On appeal, defendant claimed that warrant authorizing agents to search for other evidence of child porn was overly broad. Court said that agents didn't have to restrict their searches to the very documents of which they had already seen copies and warrant directed at items relating to child pornography did not authorize an unfocused inspection of all the defendant's property.

U.S. v. Hay (9th Cir 2000) 231 F.3d 630. Affidavit containing information that defendant was exclusive user of computer, had website evidencing his "extreme interest in young children," and was sent 19 files via FTP from an active trader in child pornography, along with agent's opinion that defendant was likely to possess more than the 19 images, provided a substantial basis for the magistrate's probable cause determination.

U.S. v. Gallo (2001) 55 M.J. 418. Affidavit containing information that child pornography had been found on defendant's military work-station computer, that child pornography had been downloaded and uploaded from work computer and Customs agent's opinion of how pornographic material is obtained and stored, provided probable cause to search defendant's residence for child pornography.

U.S. v. Cervini (10th Cir 7/31/01) 2001 WL 863559 [unpublished]. Sufficient probable cause existed in affidavit that stated that two images of child pornography posted to Internet news group were linked to defendant by message header IP address and ISP account records; that defendant had two telephone lines and the defendant was knowledgeable about computers.

U.S. v. Hernandez (D.P.R. 2002) 183 F. Supp. 2d 468. Probable cause not found where issuing magistrate relied on description of several alleged pornographic photos given by two minors who had been shown photos by defendant. Case was affirmed, however, under totality of circumstances because magistrate also heard evidence that defendant: 1) invited the girls to his house and asked them to take off their shirts; 2) approached a 10 yr. old girl and asked her to come to his house; 3) previously tried to molest a girl.

U.S. v. Carlson (S.D. Tex. 6/28/02) 236 F. Supp. 2d 686. Probable cause not found where, among other things, agent failed to link his discussion of pedophiles, pornographers and child molesters to the target of the search warrant.

U.S. v. Getzel (D.N.H. 9/24/02) 2002 WL 31114150. [unpublished] Search warrant obtained prior to *Free Speech* was found to contain sufficient probable cause on the issue of "real children." Agent's experience, coupled with his statement that the images depicted minor males engaged in sexually explicit conduct, in addition to the court's own review of the image, was sufficient to find probable cause that the images depicted real children.

1.2 Scope of Search

U.S. v. Carey (10th Cir. 1999) 172 F.3d 1268. Defendant arrested on drug charges, police obtain consent to search apartment, and seize two computers. Warrant obtained to

search computers for evidence pertaining to the sale and distribution of drugs. Detective finds jpg files, opens one and sees child porn, then downloads to disks approximately 244 jpg or image files. Motion to suppress denied by district court, but reversed by 10th Cir. which stated that the search exceeded scope of warrant, but court noted the holding was very fact specific.

U.S. v. Gray (E.D. Va. 1999) 78 F. Supp. 2d 524. Viewing contents of subdirectories, which contained child pornography, which formed probable cause to obtain second search warrant for child pornography, was within scope of the original warrant concerning hacker investigation. Key to ruling was that searching agent never abandoned his original search and knew of instances where files were intentionally mislabeled (*i.e.*, text files in files with .jpg extensions).

U.S. v. Upham (1st Cir. 1999) 168 F.3d 532. Search warrant was not overbroad by allowing seizure of "any and all computer software and hardware, . . . computer disks, disk drives . . ." Original search warrant authorized recovery of previously deleted material; recovery of files attempted to be destroyed (deleted) is same as decoding a lawfully seized coded message or reconstructing scraps of torn ransom note.

U.S. v. Campos (10th Cir. 2000) 221 F.3d 1143. Defendant transmitted two images of child porn. On appeal, defendant claimed that warrant authorizing agents to search for other evidence of child porn was overly broad. Court said that agents didn't have to restrict their searches to the very documents of which they had already seen copies and warrant directed at items relating to child pornography did not authorize an unfocused inspection of all the defendant's property.

U.S. v. Villard (D. N.J. 1988) 678 F. Supp. 483 affirmed on other grounds, 885 F.2d 117 (3rd Cir. 1989). Agents executing arrest warrant in California for federal charges out of New Jersey (transp. child porn) saw binder of pages of photographic slides on closet shelf. Held page of slides up to light, saw suspected child porn. Got search warrant to search apartment. District court suppressed the evidence.

U.S. v. Cervini (10th Cir. 7/31/01) 2001 WL 863559 (unpublished disposition). Sufficient probable cause existed in affidavit, which stated that two images of child pornography posted to Internet newsgroup were linked to defendant by message header IP address and ISP customer account records; that defendant had two telephone lines and that defendant was knowledgeable about computers.

U.S. v. Walser (10th Cir. 2001) 275 F.3d 981. While conducting a warrant search of defendant's computer for drug information, police found thumbnail image of child pornography. Agent enlarged the image to confirm, and then suspended search and obtained a new warrant. Court upheld search, emphasizing appropriate restraint by agent in obtaining new warrant. "When officers find relevant computer files mixed with irrelevant files, they may seal or hold the computer pending approval by a magistrate of conditions/limitations on a further search."

U.S. v. Wong (9th Cir. 2003) 334 F.3d 831. Defendant lacked standing to object to warrantless search of a laptop used in prior employment because he failed to establish that he had a reasonable expectation in it.

Compare:

U.S. v. Runyan (5th Cir. 2001) 275 F.3d 449. Police search of computer files and disk following search by private party (wife) struck down in part because police, absent a warrant, could not view disks not previously viewed by the private party. Police could, however, conduct a more thorough search of the files already viewed by wife, without a warrant. (Evidence was ultimately allowed under the “independent source” theory).

1.3 Consent

U.S. v. Turner (1st Cir. 1999) 169 F.3d 84. Search of defendant’s computer files exceeded scope of his consent to search of his apartment in connection with intruder’s assault on neighbor.

U.S. v. Smith (C.C. Ill. 1998) 27 F. Supp. 2d 1111. Addressed third party consent to search computer; holding very fact-specific, court did note no evidence defendant had password-protected the material seized from the computer.

Trulock v. Freeh (4th Cir. 2001) 275 F.3d 391. Addressed third party consent to search computer where consent was given by another who had joint access to the computer but did not know passwords and therefore did not have authority to grant access to the files.

U.S. v. Lemmons (7th Cir. 2002) 282 F.3d 920. Initial consensual search by police for a camera and recordings was subsequently expanded to defendant’s computer, because defendant voluntarily showcased pornographic Polaroid’s and turned on his computer for the officers. *See also, U.S. v. Habershaw* (D. Mass. 5/13/01) 2001 WL 1867803. Initial consent search of defendant’s apartment expanded to include computer when officer sat down at computer and defendant opened files for him and agreed to let officer open files himself.

U.S. v. Aaron (6th Cir. 4/3/02) 2002 WL 511557. [unpublished] Police obtained consent of defendant’s live-in girlfriend to search defendant’s computer. Although girlfriend had never used the computer, Court upheld the search, finding that defendant’s failure to use passwords or actually prohibit his girlfriend from using the computer indicated her authority to consent.

U.S. v. Mannion (4th Cir. 12/19/02) 2002 WL 31839377. [unpublished] Wife’s consent to search and seize computer disk valid where there was no evidence wife did not have complete access to those items.

1.4 Method of Searching

U.S. v. Kimbrough (5th Cir. 1995) 69 F.3d 723. Fact that executing agents chose not to review each videotape, audiotape, and document on the premises does not make the search presumptively invalid. Record reflects a significant number of documents were left behind after initial review showed them to be not in the scope of the search warrant. Defendant gave no specific examples of seized items, which would show lack of good faith belief by agents that they were covered by the warrant.

U.S. v. Horn (8th Cir. 1999) 187 F.3d 781. Officers did not exceed the scope of a warrant by seizing defendant's 300+ video collection for examination elsewhere, when warrant authorized seizure of "any and all . . . correspondence, videotapes, . . . and other objects relating to contact with an unidentified woman in Texas" with whom defendant had been corresponding regarding child pornography.

U.S. v. Habershaw (D. Mass. 5/13/01) 2001 WL 1867803. [unpublished] Law enforcement seized defendant's computer pursuant to defendant's consent, and then obtained a search warrant to search the computer. Court found that a "sector-by-sector" search of the computer, rather than a "key-word" search was a legitimate procedure to use where the warrant does not mandate a specific method for the search.

1.5 Employer Searches

U.S. v. Simons (E.D. Va. 1998) 29 F. Supp. 2d 324. Defendant, an employee at CIA's Foreign Bureau of Information Services, did not have a reasonable expectation of privacy re: his Internet use, in light of employer's written policy concerning Internet use. Searches of computer and office found reasonable.

Muick v. Glenayre Electronics (7th Cir. 2001) 280 F.3d 741. Defendant, an employee of an electronics company, did not have a reasonable expectation of privacy in work issued computer, where computer was given for use in workplace and employer could inspect computer at any time. Fact that employer seized the computer at the request of law enforcement did not make the employer an agent of the police where there was no agreement between the two, and in fact employer refused to relinquish computer until forced to do so by warrant.

See also: U.S. v. Angevine (10th Cir. 2002) 281 F.3d 1130. Defendant had no reasonable expectation of privacy in work computer, and thus no right to a *Franks'* hearing, where employer university reserved ownership and monitored use of computers. *See also: U.S. v. Reilly* (SDNY 6/3/02) 2002 WL 1163572.

U.S. v. Slanina (5th Cir. 2002) 283 F.3d 670. Government employer who was also law enforcement official had the right to conduct warrantless search of employee's computer. Even though employee's suspected misconduct was also a criminal offense, search is ok if it remains even partly an investigation of workplace misconduct. Once searched by the employer, FBI could conduct a more exhaustive warrantless search of the same computer. **NOTE:** Here, the Court found that defendant did have a reasonable expectation of privacy in work computer because he used password protection and employer had no policy: 1)

preventing the storage of personal information on computer, or 2) of conducting monitoring of computer usage.

U.S. v. Wong (9th Cir. 2003) 334 F.3d 831. Defendant lacked standing to object to warrantless search of a laptop used in prior employment because he failed to establish that he had a reasonable expectation in it.

1.6 Probation Searches

U.S. v. Knights (2001) 534 U.S. 112. Warrantless search of probationer's apartment, supported by reasonable suspicion and authorized by a condition of his probation, was reasonable within the meaning of the Fourth Amendment. Nothing in defendant's conditions of probation limited searches to those with a probationary purpose.

U.S. v. Tucker (10th Cir. 2002) 305 F.3d 1193. An anonymous tip, suitably corroborated, could form the basis for warrantless search of a parolee's residence by parole officer. Search was not invalid just because police were present, and computer could be seized as evidence of a parole violation.

Practice Note: We are currently advising law enforcement that probation/parole searches of computers must be done on scene unless there is probable cause to believe the computer contains evidence of a crime or probation or parole violation. If such probable cause exists the computer should be removed for an off scene search at a forensic laboratory. Due to the significant delay in off-sight examinations, the seizure of a computer without probable cause may cause a court to find that the search was for harassment purposes.

1.7 University Computers

U.S. v. Butler (D. Me. 2001) 151 F. Supp. 2d 82. University student used computers to receive child pornography. Student moved to suppress session logs showing when he used the computer as well as evidence obtained from the computer hard drives. Session logs are maintained for the benefit of the University and therefore are not suppressible on the defendant/student's motion. There is no generic expectation of privacy for shared usage of computers at large.

1.8 Private Searches / Computer Repair Discoveries

United States v. Jacobsen (1984) 466 U.S. 109. Supreme Court presented the framework that should guide agents seeking to uncover evidence as a result of a private search. According to *Jacobsen*, agents who learn of evidence via a private search can reenact the original private search without violating any reasonable expectation of privacy. What the agents cannot do without a warrant is "exceed the scope of the private search". (*Id.* at 115.) See also *United States v. Miller* (8th Cir. 1998) 152 F.3d 813, 815-16; *United States v. Donnes* (10th Cir. 1991) 947 F.2d 1430, 1434. But see *United States v. Allen* (6th Cir. 1999) 106 F.3d 695, 699 (*dicta*) (stating that *Jacobsen* does not permit law enforcement to reenact a private search of a private home or residence).

U.S. v. Hall (7th Cir 1998) 142 F.3d 988. During CPU repair/upgrade, tech saw unusually named files & viewed 4–6 files (1,000 files total). Tech calls state trooper, describes 2–3 images; trooper has tech copy several of the files onto a disk. Held: evidence discovered by private search; government conceded copying of files to disk was a warrantless search, but copied disk was never reviewed by law enforcement nor used as a basis for probable cause in the search warrant.

U.S. v. Barth (W.D. Tez. 1998) 26 F. Supp. 2d 929. Computer tech reviewing files in hard drive became government actor when he contacted FBI agent, for whom he worked as a confidential informant, and was told to copy the pornographic files onto disks. The defendant had a reasonable expectation of privacy in his computer files, which continued while technician had custody of the computer to perform repairs; search violated the Fourth Amendment.

U.S. v. Grimes (5th Cir. 2001) 244 F.3d 375. Defendant's wife brought defendant's computer into repair shop and authorized "cleaning" of system. Employee followed standard approach of looking at JPG files prior to deleting. Reported discovery of child porn to law enforcement. On their own, the repair shop copied images and gave to law enforcement. Court found initial search was private and outside of the Fourth Amendment. Court also found that pre-warrant viewing of the images by the FBI was still within scope of the private search and that defendant no longer possessed expectation of privacy.

1.9 Search Incident to Arrest

U.S. v. Goree (6th Cir. 9/12/02) 2002 WL 31050979. [unpublished] Court upheld a search of defendant's palm pilot/PDA as a search incident to arrest. The court found that the palm pilot was within the defendant's immediate control and therefore could be turned on and searched without any prior additional proof of its link to a crime. This opinion provides very little analysis on the issue of searching, without a warrant, a palm pilot or other small multi media digital storage unit.

1.10 Agent of the Government

U.S. v. Steiger (11th Cir. 2003) 318 F.3d 1039. Anonymous computer hacker who provided information to the police concerning defendant's possession of child porn on his computer was not an agent of the government; thus hacker's search of defendant's computer files did not implicate the Fourth Amendment, and the Wiretap Act provided no basis to suppress unlawfully intercepted electronic communications.

U.S. v. Jarrett (4th Cir. 2003) 338 F.3d 339. Anonymous computer hacker who provided information to police was not agent of law enforcement because government did not know of, or acquiesce in, the hacker's conduct. Although government later engaged in a "nod and wink" conversation with the hacker about future information, they had not done so at the time of the original information passing.

2. SEARCH WARRANTS

2.1 Describing Records and Images

With the advance in technology, traditional paper records are now being increasingly discovered stored on computers and personal data assistants. Currently, the courts have been inclined to treat computers and other electronic storage devices as ordinary containers. Thus, warrants describing specified information are generally held to permit searches of containers capable of storing that information. (*See New York v. Lorie* (1995) 630 N.Y.S.2d 483 (finding police did not exceed scope of warrant by searching contents of computer's internal drive and external disks when warrant only authorized taking possession of property).) However, since this issue has not been directly addressed by any California court, an affiant officer may still wish to include language describing how traditional paper records may now be stored. (*See People v. Ulloa* (2002) 101 Cal.App. 4th 1000 [reasonable to assume that the computer would contain incriminating evidence and that a computer would be located in defendant's home].)

[Follows description of specific records to be seized.]

The terms "records," "information," and "property" includes all of the foregoing items of evidence in whatever form and by whatever means that may have been created or stored, including records, whether stored on paper on magnetic media such as tape, cassette, disk, diskette or on memory storage devices such as optical disks, programmable instruments such as telephones, "electronic address books," calculators, or any other storage media, or any other form of "writing" as defined by Evidence Code section 250, together with indicia of use, ownership, possession, or control of such records.

Federal cases now deal with the search warrant affiant's description of the child pornography that was observed. Defense attorneys are raising the issue that the affiant misdescribed the image observed. (*See United States v. Harned* (9th Cir. 1999) [unpublished]) 182 F.3d 928 (assertion that photograph depicts "[juveniles] engaged in explicit sexual acts with adults" is, by itself, insufficient basis for probable cause); contra *United States v. Smith* (1986) 795 F.2d 841, 848-49, (9th Cir. 1986) (assertion that photograph depicts "sexually explicit conduct" sufficient for finding of probable cause). An easy way to avoid this issue is to make the images an attachment to the search warrant. After their inspection by the judge, the images would be placed under seal. (*See U.S. v. Crosby* (D. Me. 2000) 106 F.Supp.2d 53 (Court urged magistrate judges to look at the pictures described in the search warrant in order to avoid litigation). If a motion to quash or suppress is later made, the sealed portion may be reviewed by the judge before whom the motion is made.

2.2 Staleness

U.S. v. Horn (8th Cir. 1999) 187 F.3d 781. Evidence three months old not stale where subject owned wide range of pornographic videos, duplicating equipment, and traded regularly, indicating a deep and continuing interest in his collection.

U.S. v. Harvey (3rd Cir 1993) 2 F.3d 1318. Feb. 1977 – convicted for involuntary deviate sex intercourse with minor; 1988 – deported from Philippines for “being a pedophile,” 10 times between April & July 1990 and 3 times in August 1991. Received mailings from organizations known or believed to distribute child porn; search warrant in October 1991; affirmed on those grounds (remanded for resentencing).

U.S. v. Lacy (9th Cir. 1997) 119 F.3d 742. Given nature of the crime, good reason to believe the computerized visual depictions downloaded would be found in defendant’s apartment 10 months later. Defendant identified as a “collector of child porn.”

U.S. v. Sassani (4th Cir. 1998) 139 F.3d 895 (unpublished disposition). Defendant failed to support his contention that the search warrant affidavit containing Lanning’s profile of a child pornographer was required to meet the standards of *Daubert* (1993) 509 U.S. 579. Search warrant information found not stale where defendant transmitted porn on several separate occasions between 1994 and 1995, most recently four separate transmissions on 3/11/95; search warrant obtained 9/19/95. Also, search warrant found to be sufficiently particular (allowed seizure of “any [specific types of equipment listed] . . . equipment which could be used to depict, distribute, possess, or receive child porn”).

U.S. v. Winningham (D. Minn. 1996) 953 F. Supp. 1068. 1985 – convicted of sexual improprieties with children; six weeks before search warrant, had collection of photos of young girls with whip-like marks and letters written to young girls, in one defendant admitted infantilism was his thing. Search warrant sought 12/26/95; not stale.

U.S. v. Hay (9th Cir. 2000) 231 F.3d 630. Information that defendant transmitted nineteen images on a single day six months prior to search not stale based upon *Lacey*. However, affidavit authorized seizure of “visual depictions in all forms depicting minors’ genitalia and or sexual contact involving minors;” court suppressed evidence seized pursuant to descriptor “visual materials in all forms depicting minors’ genitalia.” Sexual contact and genitalia okay.

U.S. v. Albert (D. Mass. 1/18/02) 195 F.Supp.2d 267. Evidence four months old not stale where defendant had a sexual interest in minors dating back six years; defendant corresponded over the Internet about child porn on about 20 occasions; defendant had shown informant CD containing 1,500 images of child porn four months earlier; and defendant had three prior convictions in the past six years for offenses involving children.

But see:

U.S. v. Isgut, 1996 WL 775064 (S.D. Fla. 1996) (not reported in F.Supp.). Information that defendant downloaded child pornography was at least 11 months old, and may have been over a year old (specific dates of most recent activity omitted from affidavit). Staleness not adequately addressed by use of profile because affiant's experience and qualifications in this area were not spelled out and affidavit contained no opinion that defendant was believed to be a collector of child pornography.

U.S. v. Zimmerman (3rd Cir. 2002) 277 F.3d 426. Where search warrant affidavit only mentioned presence of one video clip of adult woman performing sexual act with a horse, seen six and ten months earlier at defendant's house, resulting warrant lacked probable cause. Only other information was that defendant sexually assaulted children. No information was given to support a finding that defendant might have child pornography on his home computer.

2.3 Anticipatory Warrants

U.S. v. Loy (3rd Cir. 1999) 191 F.3d 360. Controlled delivery of videotape to defendant's post office box and anticipatory search warrant obtained for defendant's home. Anticipatory warrants are not per se unconstitutional. However, the magistrate judge must find, based on facts existing when the warrant is issued, that there is probable cause to believe the contraband, which is not yet at the place to be searched, will be there when the warrant is executed, e.g., evidence that defendant previously transported child porn from his post office box to home or that he had previously used his home for receiving child porn.

U.S. v. Terry (S.D. Iowa 7/24/02) 240 F. Supp. 2d 922. Anticipatory warrants based on the controlled delivery of child porn are valid. Seizure of non-contraband materials (adult obscenity) was upheld where the court found that law enforcement could reasonably have concluded that the adult obscenity was an instrumentality of the contraband, i.e., used to conceal the child pornography.

2.4 Removing the Computer to Search Off-Scene

When confronted with a computer at a search scene, searching officers have one of two choices; either search the computer at the scene or justify its removal in the search warrant for a subsequent search off scene. (See *United States v. Kufrovich* (1997) 997 F. Supp. 246 [upholding warrant language authorizing removal of computer for later search]; *United states v. Gawrysiak* (1997) 972 F. Supp. 853.) Sample search warrant language to justify removing computers for a subsequent search off scene is available from the regional high tech crime prosecution task forces or from San Diego County DDA Jeffery Dort (jdortx@sdccda.org) or DAG Robert Morgester (Robert.morgester@doj.ca.gov).

2.5 Timely Review of the Evidence Seized

U.S. v. Brunette (D. Me. 1999); 76 F. Supp. 2d 30 affirmed, 256 F. 3d 14 (1st Cir. 2001). Magistrate judge added language to the search warrant directing agents to complete their

review of the seized computers within 30 days. Review of second computer did not begin until day 32. Court found the government offered no legitimate reason for the delay, and ordered suppression of evidence on second computer.

2.6 Evidence of Other Crimes

If records which are not authorized to be seized, or which relate to crimes not under investigation, are discovered in the course of analysis, the searching officer must obtain supplemental warrant to expand the scope of the original search warrant. (*See U.S. v. Grey* (1999) 78 F. Supp. 2d 524.) While there is an argument that such records were lawfully discovered in "plain view," in light of current case law it is prudent that when the records are first discovered that the search warrant be expanded to encompass them.

U.S. v. Carey (10th Cir. 1999) 172 F.3d 1268. Defendant arrested on drug charges, police obtain consent to search apartment, and seize two computers. Warrant obtained to search computers for evidence pertaining to the sale and distribution of drugs. Detective finds jpg files, opens one and sees child porn, then downloads to disks approximately 244 jpg or image files. Motion to suppress denied by district court, but reversed by 10th Circuit: search exceeded scope of warrant, but court noted holding was very fact specific.

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2.7 Deleted Files

U.S. v. Upham (1st Cir. 1999) 168 F.3d 532. Search warrant was not overbroad by allowing seizure of "any and all computer software and hardware, . . . computer disks, disk drives. . . ." Original search warrant authorized recovery of previously deleted material; recovery of files attempted to be destroyed (deleted) is the same as decoding a lawfully seized coded message or reconstructing scraps of a torn ransom note.

2.8 Run-away / Missing Children:

Recently, law enforcement in California has been confronted with a rash of child run-away cases where the missing child has been communicating with friends and family via the Internet. The families turn to law enforcement in the hope that they can track down their wayward minors. The challenge to law enforcement has been to find felony conduct to justify the issuance of a search warrant based upon no other information than that the child is missing and is communicating via the Internet. Penal Code section 278.5 (deprivation of custody of child or right to visitations) provides a useful felony to justify the issuance of a search warrant to obtain ISP records to locate the child. The rationale for the section 278.5 violation is that the child must be staying somewhere where they have access to a phone

line. As such the information will lead to the location of the child and the identity of the individual who is concealing them.

2.9 Evidence Obtained from an ISP

U.S. v. Hambrick (W.D. Va. 1999) 55 F. Supp. 2d 504. Suppression is not a remedy for information supplied by an ISP to law enforcement pursuant to an improper subpoena.

U.S. v. Kennedy (D. Kan. 2000) 81 F. Supp. 2d 1103. Court found that the government's 2703(d) motion lacked sufficient specific facts as to how the agents obtained the information concerning the subject and how that information leads the agents to believe the subscriber information they were seeking would assist in the investigation. Although ECPA was violated, suppression was not the proper remedy. Left unanswered: does the Cable Communications Policy Act (CCPA), 47 U.S.A. § 251 et. seq. (Application for court order must offer clear and convincing evidence that the subscriber is engaged in criminal activity; and subscriber must be notified of request), apply to a cable operator who provides Internet services?

U.S. v. Allen, (2000) 43 M.J. 402. OSI agent, without either a warrant for court order, obtained a log identifying the date, time, user and Internet addresses of sites defendant accessed. Nonetheless, 2703 provides no exclusionary rule relief.

In re Application of the United States of America for an Order Pursuant to 18 U.S.C. § 2703(d), (S.D. N.Y., 2001) 157 F.Supp.2d 286. District court ruled that the 1992 amendments to the Cable Communications Policy Act support a finding that "other services" of a cable company – read to include Internet services – aren't governed by 47 U.S.C. § 551(h). As a result, the court found that the ECPA is the "only statute that applies to information sought in this manner". The court chose not to address whether the CCPA "as a whole applies to cable companies providing Internet service through cable connections".

Note: Congress responded in the 2001 USA PATRIOT Act by amending the Cable Act to specify that its disclosure restrictions apply only to records revealing what ordinary cable television programming a customer purchases, such as particular premium channels or "pay per view" shows. (See PATRIOT Act § 211, 115 Stat. 272, 283-84 (2001).) In particular, cable operators may disclose subscriber information to the government pursuant to ECPA, Title III, and the Pen Register/Trap and Trace statute, except for "records revealing cable subscriber selection of video programming". (47 U.S.C. § 551(c)(2)(D).) Records revealing subscriber selection of video programming remain subject to the restrictions of 47 U.S.C. § 551(h).

U.S. v. Cox (N.D. N.Y. 3/11/02) 190 F. Supp. 2d. 330. A defendant has no privacy interest in subscriber information given to an ISP.

U.S. v. Bach (8th Cir. 2002) 310 F.3d 1063. Appellate court, reversing District court, found no Fourth Amendment violation where law enforcement officer was not present during warrant's execution at ISP. Court found that "civilian searches are sometimes more reasonable than searches by officers".

Practice Note: Penal Code section 1524.2 allows the out-of-state service of a California search warrant on an Electronic Communication Service (ECS) provider that is qualified to do business in California pursuant to section 2105 of the Corporations Code. An ECS is “any service which provides to users thereof the ability to send or receive wire or electronic communications”. (18 U.S.C. 2510 (15).) This would include ISP, cellular, telephone and pager companies. Penal Code section 1524.2 allows service of warrants on via fax.

3. Elements of the Case

3.1 Proof of Age

People v. Kurey (2001) 88 Cal.App.4th 840. To prove the age of the alleged minors depicted in the movie clips, the prosecution presented the expert testimony of a Certified Pediatric Nurse Practitioner who worked on the Child Abuse Services Team in Orange County. Using the Tanner Scale of physical development, the expert testified that based upon muscle development, body stature, and lack of body hair, three of the males in the video clips were minors. She also testified that based on breast development, one of the females depicted in the video was less than 18 years old. The court held in part that *The Free Speech Coalition v. Reno* (9th Cir. 1999) 198 F.3d 1083, does not bar the use of appearance evidence to prove age and appearance evidence is relevant to determining the age of alleged minors in pornographic materials.

U.S. v. Broyles (8th Cir. 1994) 37 F.3d 1314. Language used by defendant in correspondence (“teenies” between the ages of 11 and 15, just developing; range could be as low as 6 to 8 but no higher than 15); Postal Inspector’s professional & personal familiarity with child development; pediatrics professor’s testimony.

U.S. v. Anderton (11th Cir. 1998) 136 F.3d 747. Medical doctor’s opinion as to age of depicted children was sufficient to allow jury to receive the case.

U.S. v. Long (6th Cir. 1997) 108 F.3d 1377 (unpublished disposition). Even though defendant did not actually view the videotapes before his arrest, Court found there was sufficient evidence that he knew about the ages of the participants and about the type of conduct depicted, due to the descriptions of the videos, the jacket illustrations, and the warnings on the order forms.

U.S. v. Katz (5th Cir. 1999) 178 F.3d 368. Whether the age of an individual depicted in an image can be determined by a lay jury without the aid of an expert’s testimony must be determined on a case-by-case basis. Here, the probative value of the images was compromised because the government’s expert witness was unable to determine the age of the individuals depicted by using the breast development scale of the Tanner analysis that the expert advocated as scientifically valid and reliable. The court did say that the government is not precluded from trying to persuade a district court that some other witness can provide a reliable opinion regarding the age of the depicted persons using scientifically valid methodology that is not dependent on the Tanner scale.

U.S. v. Stanley (10th Cir. 1990) 896 F.2d 450. Testimony of officer as to age of child okay under FRE 701-lay opinion testimony limited to those opinions or inferences which are: 1) rationally based on the perception of the witness [view the photos!]; and 2) helpful to a clear understanding of the witness' testimony or the determination of a fact in issue [offer Inspector's testimony as lay opinion testimony about the age of the subjects depicted and to explain "the purpose of him seizing them"].

U.S. v. Pollard (E.D. Tenn. 2001) 128 F. Supp. 2d 1104. Analysis of *Daubert*, *Kumho Tire* and FRE 702 as it relates to the admissibility of expert opinion of age of female depicted in videotape.

U.S. v. Rayl (8th Cir. 2001) 270 F.3d 709. District court did not abuse its discretion in permitting experienced pediatrician to testify as an expert as to the age of children in photos, magazine and video found in defendant's possession.

3.2 Proving Picture Depicts a Real Child

U.S. v. Nolan (1987 1st Cir.) 818 F.2d 1015. Court found that individuals depicted in a Swedish magazine were not wax mannequins because the same child was depicted in different poses, and because of the clarity of the images. The Court said, "[w]e believe that this judgment, like a judgment that the pictures were photographs, lay within the competence of the non-expert fact finder to make from her personal perusal of the pictures found, in the magazines in evidence." (*Id.*, at 1018.) The prosecution was not required to call a photography expert to negate the speculative possibility of such fakery. (*Id.*)

U.S. v. Richardson (2002 11th Cir.) 304 F.3d 1061. Appellate Court refused to reverse a defendant's conviction for transporting child pornography even though the jury instruction was erroneous because it included the words "or appears to be." Court itself reviewed the images submitted to the jury. "The children in those images were real. Of that we have no doubt whatsoever." The prosecution's only evidence on whether the children in the images were real came from an investigator in the Innocent Images Task Force who testified that based on his training and extensive experience as a member of the task force, the images depicted actual children, not what simply appeared to be children.

U.S. v. Bender (11th Cir. 2002) 290 F.3d 1279. In this child pornography trial, pediatric expert testified as to the age of the child depicted and that "the photographs appeared to portray a real child". On appeal the Court summarily denied defendant's Free Speech claim and noted there was sufficient evidence that the images portrayed real children.

U.S. v. Morgan (D. Me. 5/10/02) 2002 WL 975154. Defendant was allowed to withdraw his guilty plea after Free Speech ruling because the defendant may not have had time to determine whether the images were of real children. Generally, the court will consider five factors relevant to withdrawal: 1) whether plea was voluntary; 2) force of defendant's reason for change of plea; 3) timing of request; 4) whether defendant asserts actual innocence; and 5) whether plea agreement had been reached.

U.S. v. Guagliardo (9th Cir. 2002) 278 F.3d 868. In dicta, Court approved of method of satisfying requirement of proving “actual children” by proving images were published prior to computer image alteration/creation technology became commercially available.

U.S. v. Vig (8th Cir. 1999) 167 F.3d 443. Court held that the images were viewed by the jury, which was in a position to draw its own independent conclusion as to whether real children were depicted. No evidence was introduced to the contrary.

U.S. v. Sims (D.N.M. 2002) 220 F. Supp. 2d 1222. Conviction reversed under 2252(a) where the government put forth no evidence that the images depicted actual minors and in fact objected to the notion that it was required to do so.

U.S. v. Appledorn (A.F. Ct. Crim.App., 2002) 57 M.J. 548. Defendant pled guilty to receiving child pornography, stating that he believed the images depicted children under the age of 18. Military court found that this statement, in conjunction with the court’s own viewing of the images, was sufficient evidence that the images depicted real children.

U.S. v. Hall (11th Cir. 2002) 312 F.3d 1250. Although defendant received unconstitutional jury instruction, Circuit Court examined images at issue and concluded that the children depicted in the images were real and no reasonable jury could have found that the images were virtual children as opposed to actual children.

U.S. v. Oakes (D.Me. 2002) 224 F. Supp. 2d 296. In rejecting defendant’s 2255 claim for failure to show cause and prejudice, the court noted that it looked at the images involved and concluded that “actual innocence” did not apply to the defendant.

U.S. v. Pearl (10th Cir. 2003) 324 F.3d 1210. Court declined to review images and substitute its judgment for the government’s burden at trial. Conviction vacated on other grounds (unconstitutional jury instruction with “appear to be” language.

U.S. v. Reilly (S.D. N.Y. 10/15/02) 2002 WL 31307170. Defendant’s plea to child pornography charges reversed where defendant did not allocute that he “knew” the images were of real children. Court found that, after *Free Speech*, government must prove that the defendant knew the images he possessed/received involved real minors.

But see, U.S. v. Marcus (E.D. N.Y. 1/6/03) 239 F. Supp. 2d 277). Plea upheld where defendant was aware of the nature of the government’s proffer.

U.S. v. Lee (A.F. Ct. Crim. App. 9/9/02) 57 M.J. 659. Conviction affirmed although government put forth no evidence that child pornography images at issue depicted real children. The court found that the photos themselves were evidence that the fact finder could consider to determine whether actual children were involved.

U.S. v. Mason (A.F. Ct. Crim. App. 6/11/02) 2002 WL 1757175. Defendant appealed his plea of receiving child pornography, claiming, among other things, no finding had been made as to whether the images depicted “real children”. The Court found that no one had even suggested below that the images were not of real children. The Court then proceeded to view the images and stated they were satisfied that the images depicted real children.

U.S. v. Rejkowski (N-M. Ct. Crim. App. 2/27/03) 2003 WL 649089. On appeal of guilty of plea for cp, court viewed images in question and found “no doubt that they depict actual children”.

Practice Note: *Ashcroft v. Free Speech Coalition* have resulted in numerous inquiries regarding whether we have to prove the image depicts a real child. Penal Code section 1311.3 and related statutes all require that the image “depicts a person under the age of 18”. Thus we have always had to establish that the image depicts a real child. In the past prosecutors have relied upon the jury or witnesses to make this determination after examining the image. (See *US v Nolan* (1987 1st Cir) 818 F.2d 1015.) Other evidence may be relevant to this determination, such as the defendant’s statement, location where the images were obtained, a number of images, and the location where the images were stored.

Additional material on the issue of “virtual Child Pornography” can be obtained from DAG Robert Morgester (Robert.Morgester@doj.ca.gov).

3.3 Defendant’s Knowledge of the Age of Child Depicted

U.S. v. X-Citement Video (1994) 513 U.S. 64. “Knowingly” extends both to the sexually explicit nature of the material and to the minority of the performers.

U.C. v. Crow, (5th Cir. 1999) 164 F.3d 229. Motion to Quash denied where individual defendant attempted to exploit [a § 2251(a) charge] was an undercover detective. Excellent discussion of facts that showed defendant knew of the minority of the individual who he asked to make the video and of the individual depicted in the video he received (factual impossibility defense failed). Also, guideline for production applied despite fact “victim” was an undercover detective.

U.S. v. Powell, (N.D. Ala. 1998) 1 F. Supp. 2d 1419. Motion to dismiss 18 U.S.C. § 2422(b) charges denied, rejecting factual impossibility/legal impossibility analysis in favor of analysis that focuses on the “objective acts” of the defendant. Government “must prove its case by showing that defendant’s ‘objective acts’ sufficiently corroborate the firmness of defendant’s alleged criminal intent [use of computer and modem to attempt to knowingly induce person under age 18 to engage in sex act]. See, *Hatch v. Superior Court* (2000) 80 Cal.App. 4th 170.

U.S. v. Long (6th Cir. 1997) 108 F. 3d 1377 (**unpublished decision**). Even though defendant did not actually view the videotapes before his arrest, Court found there was sufficient

evidence that he knew about the ages of the participants of the videos, the jacket illustrations and the warnings on the order forms.

U.S. v. Brown (6th Cir. 1994) 25 F.3d 307. Defendant must know of the nature of the materials involved.

U.S. v. Griffith (2nd Cir. 2002) 284 F.3d 338. For prosecutions under sections 2251(a) or 2423(a), government is not required to prove that defendant knew victim's age.

3.4 Agent Posing as Child

U.S. v. Smith (11th Cir. 1985) 749 F.2d 1568. Case deals with fraud statute, but may be helpful by analogy. Defendant need not cause a "real" victim to travel in interstate commerce to violate § 2314; causing the travel of a government agent who poses as a victim is sufficient.

U.S. v. Han (H.D. N.Y. 1999) 66 F. Supp. 2d. Whether the defendant was unable to complete the crime of 2423(b) because the victim was fictitious is irrelevant in addressing guilt.

3.5 Knowing Receipt

U.S. v. Brown (6th Cir. 1994) 25 F.3d 307. Defendant must know of the nature of the materials involved.

U.S. v. Osborne (4th Cir. 1991) 935 F.2d 32. Statutory requirement of "knowingly received" protects only those who receive by mistake, and not those who know exactly what they ordered. Defendant in this case was not at home to receive controlled delivery – still found guilty.

U.S. v. Tucker (D. Utah 2001) 150 F. Supp. 2d 1263. Defendant knowingly possessed deleted cache files because he demonstrated ultimate dominion and control over the images. *See also U.S. v. Simpson* (10th Cir. 1998) 152 F.3d 1241 (fact that defendant deletes or destroys evidence does not eliminate his culpability for engaging in the conduct related to that evidence).

U.S. v. Gendron (1st Cir. 1994) 18 F.3d 955, *cert. denied*, 513 U.S. 1051 Government need not prove the defendant's state of mind in respect to "jurisdictional facts" such as the interstate nature of a transmission.

U.S. v. Robinson (1st Cir. 1998) 137 F.3d 652. Possession case. Due process did not require government to prove that defendant had actual knowledge of jurisdictional element, i.e., that defendant knew photos or materials used to produce photos had been transported in interstate commerce.

U.S. v. Colavito (2nd Cir. 1994) 19 F.3d 69. Receipt and possession case. Section 2252(a) (4)(B) "lists several means by which pornography may travel between states, including the transmission of visual images across telephone lines by way of computer modems." Defendant must know that he is receiving material through interstate commerce and the materials contain sexually explicit depictions of minors.

U.S. v. Simpson (10th Cir. 1998) 152 F.3d 1241. Sufficient proof where government presented evidence that defendant's computer contained two child pornography files, the names of which were substantially similar to the names of files downloaded by defendant over the internet, although the specific files listed in the indictment had apparently been deleted. Fact that defendant deletes or destroys evidence does not eliminate his culpability for engaging in the conduct related to that evidence.

3.6 **Knowing Receipt – Temporary Internet Cache**

U.S. v. Tucker (10th Cir. 2002) 305 F.3d 1193. Defendant claimed that he did not knowingly possess child pornography images that were found in his cache file, because he only meant to view the images on the Internet and not to possess them. Court rejected this argument and found that defendant's knowledge of the existence of the cache file was sufficient to show knowing possession of the images located there.

But see: U.S. v. Parish (9th Cir 2002) 308 F.3d 1025. Court affirmed downward departure in sentence for defendant who pled guilty to possession of child pornography. Court reasoned that because images were automatically stored in defendant's temporary Internet cache, defendant had not actively downloaded or stored any files, and defendant had no organization or retrieval system for the images, defendant's conduct was "comparatively minor" with respect to other offenders and thus outside the heartland of the offense.

U.S. v. Stulock (8th Cir. 2002) 308 F.3d 922. After bench trial, district court acquitted defendant on possession charges where charged images were in browser cache, concluding that "one cannot be guilty of possession for simply having viewed an image on a web site, thereby causing the image to be automatically stored in the browser's cache, without having purposely saved or downloaded the image." (*Id.* at 925.) This issue was not appealed by the government.

Jury Instruction: POSSESSION

(adapted from CALJIC 1.24 and *People v. Martin* (2001) 25 Cal. 4th 1180,1191-1193

For purposes of this section there are two kinds of possession: actual possession and constructive possession.

"Actual possession" requires that a person knowingly exercise direct physical control over a thing.

"Constructive possession" does not require actual possession but does require that a person knowingly exercise control over or the right to control a thing, either directly or through another person or persons.

One person may have possession alone, or two or more persons together may share actual or constructive possession.

In order to prove that the defendant possessed matter depicting a person under the age of 18 years personally engaging in or simulating sexual conduct the People must prove that the possession was more than fleeting and minimal, leading to a reflexive act of abandonment for the purpose of disposal of the matter. The People do not need to prove that the defendant intended to retain the matter, but rather that he intended to possess the matter.

3.7 Commercial Purpose

People v. Cochran (2002) 28 Cal. 4th 396[02 Daily Journal, D.A.R. 7729]. Penal Code section 311.4, subd. (b), using a minor to produce child pornography for commercial purposes does not require proof that a defendant intended to profit financially. The statute requires the court to look at producer's intent when he persuaded the child to create the image of sexual conduct, not on evidence of a defendant's actual marketing of pornography in a profit-making venture. Evidence that a defendant posted the images on the Internet with intent to trade is sufficient.

3.8 Lascivious Exhibition of the Genitals

People v. Kongs (App. 2d Dist. 1994) 30 Cal. App. 4th 1741; *U.S. v. Dost* (N.D. Cal. 1986) 636 F. Supp. 828. Factors, among others, that may be relevant in a particular case: 1) whether focal point is on child's genitalia or pubic area; 2) whether setting is sexually suggestive, i.e., in place or pose generally associated with sexual activity; 3) whether child is in unnatural pose, or in inappropriate attire, considering child's age; 4) whether child is fully or partially clothed, or nude; 5) whether child's conduct suggests sexual coyness or willingness to engage in sexual activity; and 6) whether conduct is intended or designed to elicit sexual response in viewer. Note: this is similar to the federal factors.

People v. Kongs (App. 2d Dist. 1994) 30 Cal. App. 4th 1741, 1754; *U.S. v. Knox* (3rd Cir. 1992) 977 F.2d 815. An exhibition of the genitals or pubic area encompasses visual depictions of a child's genital or pubic area even when these areas are covered by clothing.

People v. Spurlock (2004) 2004 DJDAR 277. Defendant took pictures of his 15 year-old neighbor in his garage. In the pose her legs are "splayed" but she is wearing a bra and panties and her genitalia was not "nude" in any way. The Court held that the exhibition of the girl's partially clad pubic area for the sexual stimulation of the viewer is sexual conduct and upheld convictions under PC 311.3 and 311.4. Court also indicated that absent a request for an instruction on the *Dost* factors, a judge does not need to instruct on them. The court seems to suggest that if such an instruction was requested that a judge would be wise to give the instruction. See, *U.S. v. Dost* (N.D. Cal. 1986) 636 F. Supp. 828.

U.S. v. Knox (3rd Cir. 1992) 977 F.2d 815. An exhibition of the genitals or pubic area encompasses visual depictions of a child's genital or pubic area even when these areas are covered by clothing.

U.S. v. Dost (N.D. Cal. 1986) 636 F. Supp. 828. Factors, among others, that may be relevant in a particular case: 1) Whether the focal point of the depiction is the child's genitalia or pubic area; 2) whether the setting is sexually suggestive, i.e., in place or pose generally associated with sexual activity; 3) whether the child is depicted in an unnatural pose or in inappropriate attire, considering the age of the child; 4) whether the child is fully or partially clothed, or nude; 5) whether the depiction suggests sexual coyness or a willingness to engage in sexual activity; 6) whether the depiction is intended or designed to elicit a sexual response in the viewer.

U.S. v. Wiegand (9th Cir 1987) 812 F.2d 1239. Lasciviousness is not a characteristic of the child photographed but of the exhibition, which the photographer sets up for an audience that consists of himself or like-minded pedophiles. A picture of a child's sex organs displayed lasciviously – that is, so presented by the photographer as to arouse or satisfy the sexual cravings of a voyeur.

U.S. v. Carroll (5th Cir. 1999) 190 F.3d 290. Taking and scanning in a Polaroid photo of minor, cutting and pasting his face onto a computer image of a nude boy constituted sexually explicit conduct under section 2251(a), since defendants used a minor to engage in the simulated lascivious exhibition of a child's genitals.

U.S. v. Amirault (1st Cir. 1999) 173 F.3d 28. At sentencing, district court erred in applying cross-reference in possession guideline to trafficking guideline because the downloaded image did not depict sexually explicit conduct (lascivious exhibition of the genitals). Case sets forth court's legal standards for evaluating whether a photograph displays sexually explicit conduct.

U.S. v. Hall (E.D. Cal. 1998) 35 F. Supp. 2d 1193 (depublished). At sentencing (based upon a preponderance of the evidence), court found cross-reference from trafficking and possession guidelines to production guideline did not apply. Despite court's belief that video tape's emphasis on children's intimate body parts plus clandestine bedroom camera in room in which defendant had children change their clothes, court was not convinced that the defendant succeeded in presenting the boys' sex organs in a way tending to arouse the viewer. Also, no "pattern of activity" enhancement.

U.S. v. Dauray (D. Conn. 1999) 76 F. Supp. 2d 191. Contains good analysis of three images applying the *Dost* factors.

U.S. v. Grimes (5th Cir 2001) 244 F. 3d 375. Court held that pixelation of the pubic area of the images didn't remove them from the coverage of the statute. Analyzed images in light of *Knox* and *Dost* cases and found that the production of the images involved the use of minors engaging in sexually explicit conduct before the pixelation was done to the image; therefore the image was considered child pornography despite the subsequent effort to cover the pubic area. Court also noted the sufficient portions of the pubic area were still visible to qualify the images as "lascivious exhibitions".

U.S. v. Various Articles of Merchandise Schedule No. 287 (3rd Cir. 2000) 230 F.3d 649. Government sought seizure and forfeiture of 264 magazines, which contained naked minors,

as violating obscenity statutes. The Court found that the district court was incorrect when it interpreted the *Knox* case as relaxing the *Miller* obscenity test. Contains interesting discussion of the works of Jock Sturges and David Hamilton.

U.S. v. Rayl (8th Cir. 2001) 270 F.3d 709. The question whether materials depict a “lascivious exhibition of the genitals” is for the finder of fact. However, the meaning of “lascivious exhibition of the genitals” is an issue of law. Court stated that the district court should conduct a preliminary review of whether the materials offered by the government depict sexually explicit conduct as a matter of law.

U.S. Kemmerling (8th Cir. 2002) 285 F.3d 644. A picture is lascivious only if it is sexual in nature and intended to elicit a sexual response in the viewer.

4. JURISDICTION

4.1 Generally

U.S. v. Schaffner (7th Cir. 2001) 258 F.3d 675. In 2251 prosecution, a case can be brought where a visual depiction was produced, or where the visual depiction was ultimately transported to. (Court appears to assume this case focused on issue of jurisdictional nexus rather than venue).

Pavlovich v. Superior Court (2002) WL 31641714. Exercising personal jurisdiction based solely on Internet posting violated due process. A California court in a suit by the licensor of technology to encrypt digital versatile discs (DVDs) with motion pictures could not exercise personal jurisdiction over a Website operator who posted on the Internet a computer program to enable the decryption and copying of DVDs. The operator did not expressly aim his allegedly tortious conduct (misappropriation of trade secrets) at or intentionally target California. Even though he knew about an entity for licensing encryption technology, he could not have known that his conduct would harm the licensor in California when the misappropriated code was first posted two months before the first license. His knowledge of the possibility of harm to the motion picture, computer, and consumer electronics industries centered in California was insufficient.

4.2 Outrageous Conduct / Manufacturing Jurisdiction

U.S. v. Moore (6th Cir. 1990) 916 F.2d 1131. “Mailing” element of child pornography statute was satisfied even though defendant received video tape through controlled delivery orchestrated by undercover agents; package defendant received had proper postage, was addressed and sealed, and was received at the post office.

U.S. v. Musslyn (8th Cir. 1989) 865 F.2d 945. The court held that the outrageous government conduct defense is not available to the defendant because he was clearly predisposed to order child pornography and the government’s agents involved only acted in concert with the defendant’s illegal request.

U.S. v. Esch (10th Cir. 1987) 832 F.2d 531. Although the creation of the undercover operation by the postal inspectors undeniably provided a conduit for interstate activity, the government agents did not provoke any activity that the defendants were not predisposed to undertake. The agents, by working in concert during the course of the investigation, did not thereby act “to ensure that an interstate element would be present”.

U.S. v. Smith (11th Cir. 1985) 749 F.2d 1568. A government agent or informer must unilaterally supply the interstate element of the offense at the government’s behest – e.g., when the agent goes out of state merely for the purpose of making the interstate call and creating federal jurisdiction – before federal jurisdiction will be deemed to have been improperly manufactured.

U.S. v. Brinkman (4th Cir. 1984) 739 F.2d 977. No presumptive conclusion that the interstate travel was improperly “manufactured,” without benefit of any explanation on record as to the basis for the decision determining the location of the meeting. This was government agent selected, as a meeting place, a location one hundred yards across the state line. Defendant did not make an effort to obtain an explanation for the location chosen.

U.S. v. Lamb (N.D. N.Y. 1996) 945 F. Supp. 441. Defendant failed to establish that the government engaged in outrageous conduct by transmitting or offering to transmit images of child pornography without evidence to contradict government’s assertion that agents received transmissions but did not transmit themselves.

But watch out!

U.S. v. Archer (2nd Cir. 1973) 486 F.2d 670. In a Travel Act prosecution, jurisdiction was deemed manufactured by agents who placed out-of-state calls to defendants to create federal jurisdiction. This was the only basis for federal jurisdiction in the case. Not to be viewed as *per se* rule that no prosecution can be supported by the jurisdictional requirement satisfied by agent conduct.

U.S. v. Brantley (4th Cir. 1985) 777 F.2d 159. Government did manufacture jurisdiction by moving gambling equipment from Virginia to South Carolina, as well as pretending to order and consume drinks made out-of-state, in order to arrest extortionists. Commercial predicate for federal jurisdiction could not be found in such pretense on the part of federal agents.

U.S. v. Coates (4th Cir. 1991) 949 F.2d 104. Sole reason for government agent’s actions were to manufacture jurisdiction. Probably a fact-specific decision.

5. CHARGING ISSUES

5.1 Recording Private Communication or Sexual Conduct

People v. Gibbons (App. 4 Dist. 1989) 215 Cal.App.3d 1204. Prohibition of use of electronic amplifying or recording device to eavesdrop or record private “communications” under Penal Code section 632 is not limited to surreptitious recording of oral communications, but may extend to recording of sexual acts or other forms of communication.

5.2 Solicitation and Attempt

People v. Herman (App. 1 Dist. 2002) 97 Cal.App.4th 1369. Penal Code Section 653f, governing solicitation, does not apply where the defendant directly solicited the minor to “commit” the offense of lewd or lascivious acts, since the minor would not have committed the offense of lewd or lascivious acts by doing what the defendant asked since the acts were not crimes to the minors.

Practice Note: Recently prosecutors have run into problems using the attempt statute to prosecute Traveler² cases (charging 664/288). Judges have ruled that the suspect’s conduct constitutes solicitation but does not rise to the level of attempt. In summary solicitation is defined as an offer or invitation to another to commit a crime. (See gen., 1 Witkin & Epstein, Cal. Criminal Law (2d ed. 1988) Solicitation: Nature of Crime, § 124, pp. 143-144.) It does not, by itself, constitute an attempt, but may escalate into an attempt to commit a crime after the officer commits “a direct, unequivocal act towards committing the crime [.]” (*Id.*, Nature of Attempt § 143, p. 161; § 21a.) It can be extremely difficult to show the necessary act for a violation of any attempt statute in traveler cases. (See *People v. La Fontaine* (1978) 79 C.A.3d 176; *People v. Adami* (1973) 36 C.A. 3d 452; but see *People v. Ansaldo* (1998) 60 C.A.4th 1190, [when specific intent is present, only slight acts are necessary to show more than mere preparation]). Since there is no solicitation offense available to charge, prosecutors are urged to consider filing additional alternative charging theories such as Penal Code Section 288.2 [sending defined harmful matter to the child for the purpose of seducing the minor] or Penal Code section 207 [enticing or persuading a child to move within the county for purposes of committing an act as defined by section 288].

6. DEFENSES

6.1 Entrapment

U.S. v. Osborne (4th Cir. 1991) 935 F.2d 32. Receipt case. Defendant failed to produce any evidence of lack of predisposition, which warranted dismissal of the entrapment defense prior to trial. Defendant had responded to advertisement placed by postal inspector in

² A sexual predator who uses the Internet to meet minor children is referred to by law enforcement as a traveler. Past cases have demonstrated that the sexual predator will travel great distances to meet with a child to consummate the relationship.

video tape publication with letter indicating his interest in purchasing “young girl (teenagers) videos,” received catalog offering five adult and five child pornographic videos for sale, and then ordered two child porn videos.

U.S. v. Harvey (2nd Cir. 1993) 991 F.2d 981. Receipt case. Defendant’s requests for catalog of material featuring “younger performers,” “young performers,” and “your youngest performers” were indirect requests for child porn sufficient for jury to find predisposition beyond a reasonable doubt. Defendant’s prompt acceptance of government sponsored invitation to buy child porn, as reflected in the order form, was sufficient for government to show defendant was predisposed to commit the crime.

U.S. v. Gifford (1st Cir. 1994) 17 F.3d 462. Receipt case. Evidence comfortably supported conclusion that postal inspectors did not induce defendant to commit the crime, and thus did not entrap the defendant, by mailing open-ended solicitations to purchase pornographic materials depicting children. Solicitations made no appeal to the sympathy of any obviously reluctant person, and, in fact, defendant was required to pay in advance to obtain any material that he deigned to order.

U.S. v. Gendron (1st Cir. 1994) 18 F.3d 955. Receipt case. No entrapment where government mailed solicitations from sham companies, where solicitations did not progress from innocent lure to frank offer, did not (with one exception) appeal to any motive other than desire to see child pornography, did not claim to come from lobbying organization seeking removal of restraints and funding its efforts through pornographic catalogue sales, and did not ask defendant to commit crime as a matter of principle.

U.S. v. Byrd (5th Cir 1994) 31 F.3d 1329. Receipt case. Sufficient evidence of defendant’s predisposition to commit offense, though defendant had been targeted by undercover Postal Service “sting” operation, given evidence of defendant’s eager and prompt response to each government mailing, his preexisting possession of foreign sex education text containing pictures of children and sexually explicit questionnaire prepared for nine year old boys, testimony that he fondled his young foster sons and his possession of photos of foster sons, and inconsistency of claim of entrapment with his “reverse sting” defense.

But watch out!

Jacobson v. U.S. (1992) 503 U.S. 540. Government did not establish that defendant has a predisposition, independent of government action, to receive child porn through the mail where evidence showed that defendant was ready and willing to commit the crime only after government had engaged in 2 ½ years of undercover activity consisting of communications from fictitious organizations and persons attempting to convince defendant that he had the right, or should have the right, to engage in behavior prohibited by law.

U.S. v. Gamache (1st Cir. 1998) 156 F.3d 1. Case reversed because judge failed to instruct the jury on entrapment.

U.S. v. Poehlman, (9th Cir. 2000) 217 F.3d 692. Government's protracted communications with target in "charm school" undercover sting operation constituted unlawful inducement of target. In the absence of predisposition, this unlawful inducement amounted to entrapment as a matter of law. If a defendant is predisposed to commit the offenses, he will require little or no inducement to do so; conversely, if the government must work hard to induce a defendant to commit the offense, it is far less likely that he was predisposed.

6.2 First Amendment / Research

New York v. Ferber (1982) 458 U.S. 747. Child pornography does not enjoy First Amendment protection.

U.S. v. Matthews (4th Cir. 2000) 209 F.3d 338. The First Amendment does not permit a bona fide reporter to trade in child pornography (§ 2252) in order to create a work of journalism.

People v. Hsu (2000) 82 Cal.App.4th 976. Facts: In several e-mail communications, defendant sent nude photographs to a police officer who was posing as a minor and solicited the officer to engage in various sexual acts. Held: (1.) Penal Code section 288.2, subd. (b) (using the Internet to send a minor lewd matter with intent to seduce the minor), does not violate the Commerce Clause of the United States Constitution. (2.) Penal Code section 288.2, subd. (b), does not violate the First Amendment of the United States Constitution. Although it is a content-based regulation, it survives strict scrutiny analysis and is neither overbroad nor vague.

6.3 Impossibility

U.S. v. Crow (5th Cir. 1999) 164 F.3d 229. Motion to quash denied where individual defendant attempted to exploit [a § 2251(a) charge] was an undercover detective. Excellent discussion of facts which showed defendant knew of the minority of the individual who he asked to make the video and of the individual depicted in the video he received (factual impossibility defense failed). Also, guideline for production applied despite fact "victim" was an undercover detective.

U.S. v. Butler (9th Cir. 1996) 92 F.3d 960. A sentencing case pursuant to a travel case conviction where agent posed as the child while communicating with the defendant. Impossibility issue not dealt with directly but may have some impact when argued as supporting this investigative approach.

U.S. v. Smith (11th Cir. 1985) 749 F.2d 1568. Case deals with fraud statute, but may be helpful by analogy. Defendant need not cause a "real" victim to travel in interstate commerce to violate section 2314; causing the travel of a government agent who poses as a victim is sufficient.

U.S. v. Farner (5th Cir. 2001) 251 F.3d 510. Defendant who traveled to have sex with a 14-year-old who turned out to be an FBI agent was convicted of section 2422(b) and argued

legal impossibility on appeal. The 5th Circuit adopted the district court's view that the impossibility was factual, because the defendant unquestionably intended to engage in the illegal conduct but failed only because of circumstances unknown to him.

U.S. v. Root (11th Cir. 2002) 296 F.3d 1222. Defendant traveled to have sex with a 13-year-old girl who turned out to be a law enforcement officer. Court followed 5th circuit finding that the existence of an actual minor victim is not required in order to convict.

U.S. v. Powell (N.D. Ala. 1998) 1 F.Supp.2nd 1419. Motion to dismiss denied, rejecting factual impossibility / legal impossibility analysis in favor of analysis that focuses on the "objective acts" of the defendant. Govt. "must prove its case by showing that def.'s 'objective acts' sufficiently corroborate the firmness of def.'s alleged criminal intent." (use of computer and modem to attempt to knowingly induce person under age of 18 to engage in sex act.)

U.S. Brockdorff (D.C. Cir. 1997) 992 F.Supp. 22. Travel case where agent posed as child. Good discussion by court validating this investigative technique.

U.S. v. Han (N.D.N.Y. 1999) 66 F.Supp.2nd 362. Whether the defendant was unable to complete the crime because the victim was fictitious is irrelevant in addressing guilt.

6.4 Public Authority

U.S. v. Parker (8th Cir. 2001) 267 F.3d 839. Public authority defense requires a defendant to show that he was engaged by a government official to participate in a covert activity. Defendant who continued to download child pornography after being instructed to deliver to the FBI only the images he had already obtained and stored showed defendant was acting on his own as opposed to at the authorization of the FBI.

6.5 Charging Issues

U.S. v. Reedy (5th Cir. 2002) 304 F.3d 358. Where defendants owned a number of websites that transmitted hundreds of images of child pornography, court found that "rule of lenity" required that defendants be charged only with the websites themselves, and not with each individual image that was transmitted.

U.S. v. Fiske (E.D. Mich. 2003) 255 F.Supp.2d 694. Possession and receipt of the same material may be both charged in one indictment. However, if defendant is convicted of both, the government must elect between the counts prior to sentencing.

7. DISCOVERY AND EVIDENCE

7.1 Defense Requests for Copies of Child Pornography

Westerfield v. Superior Court of San Diego County (2002) 99 Cal.app.4th 994. Appellate Court ordered the copying images for use by the defense. Court noted that the failure to release thousands of images would impact the defendant's right to effective assistance of counsel and the right to a speedy trial.

U.S. v. Kimbrough (5th Cir. 1995) 69 F.3d 723. Government's refusal to allow defendant to copy seized child pornography as part of discovery process did not violate discovery rule, since child pornography was illegal contraband.

U.S. v. Horn (8th Cir. 1999) 187 F.3d 781. Trial court didn't err in denying defendant's request for copies of videotapes, since the tapes were prima facie contraband. Government's offer to allow defendant's expert to view the tapes was sufficient.

U.S. v. Husband (E.D. VA 2003) 246 F.Supp2d. 467. Child porn. Is contraband. Court declined to order government to provide a copy to defense. Court ordered government to make evidence and viewing room available to defense counsel and/or his expert on 24 hours notice.

Practice Note: As of January 1, 2004, discovery issues involving child pornography are governed by Penal Code section 1054.10. The requirements are as follows:

(a) Except as provided in subdivision (b), no attorney may disclose or permit to be disclosed to a defendant, members of the defendant's family, or anyone else copies of child pornography evidence, unless specifically permitted to do so by the court after a hearing and a showing of good cause.

(b) Notwithstanding subdivision (a), an attorney may disclose or permit to be disclosed copies of child pornography evidence to persons employed by the attorney or to persons appointed by the court to assist in the preparation of a defendant's case if that disclosure is required for that preparation. Persons provided this material by an attorney shall be informed by the attorney that further dissemination of the material, except as provided by this section, is prohibited.

7.2 Introduction of E-mails

U.S. v. Sidiqi (11th Cir. 2000) 235 F.3d 1318. E-mails introduced into evidence over defendant hearsay and improper authentication objections. Court analyzed the authentication issues under traditional evidentiary standards. (FRE 901(a) and 901 (B) (4)). Contains good discussion of circumstantial evidence of authenticity but no discussion as to the technical aspects of e-mail. As to hearsay objection, the e-mails were considered admissions of a party. (FRE 801(d)(2)(A)).

People v. Von Gunten (2002 Cal.App 3d Dist.) 2002 WL 501612. [unpublished]. Defendant laid an inadequate foundation of authenticity to admit, in prosecution for assault with a deadly weapon, hard copy of e-mail messages (Instant Messages) between one of his friends and the victim's companion, as there was no direct proof connecting victim's companion to the screen name on the e-mail messages.

7.3 Introduction of Text Stories

U.S. v. Grimes (5th Cir. 2001) 244 F.3d 375. Court found that the admission of sexually explicit stories was in error. Although the stories were of a different sexual nature than the charged images, the Court found they were relevant and probative as to whether defendant knew the charged images depicted minors and if defendant knowingly possessed the charged images. The Court found that the images were admissible under FRE 404(b) but that the danger of unfair prejudice substantially outweighed the probative value. Court stated that the redaction of the stories may have made them admissible.

7.4 Introduction of Other Photographs

U.S. v. Riccardi (D.Kan. 2003) 258 F.Supp2d 1212. Images of child erotica were admissible in trial of receipt and possession of child pornography as F.R.E. 404(b) evidence to show knowledge and intent.

U.S. v. Raney (7th Cir. 2003) 342 F.3d 551. Homemade adult pornography was properly admitted in case of attempted production of child pornography as probative of defendant's intent to produce homemade child pornography.

U.S. v. Jahner (9th Cir. August 11, 2003) 2003 WL 21920011 [unpublished]. Pictures of defendant's penis admitted in travel prosecution despite def. Willingness to stipulate. Court found that they helped prove an element, they defended against defendant's claim of entrapment, and they provided a human element to the case.

7.5 Introduction of Computer Records

People v. Hawkins (June 2002) 98 Cal.App.4th 1428. Court addresses Evidence Code section 1552 [printed representation of computer information or a computer program is presumed to be accurate]. Court noted "the true test for admissibility of a printout reflecting a computer's internal operations is not whether the printout was made in the regular course of business, but whether the computer was operating properly at the time of the printout".

7.6 Authentication of Screen Name

U.S. v. Tank (9th Cir. 2000) 200 F.3d 627. Discussion on authentication of screen name.

7.7 Stipulations to Images of Child Pornography

U.S. v. Campos (10th Cir. 2000) 221 F.3d 1143. District court did not abuse its discretion when it allowed the jury to view the two pornographic images described in the indictment, despite the defendant's offer to stipulate that those images constituted child pornography.

U.S. v. Merino-Balderrama (9th Cir. 1998) 146 F.3d 758. Defendant's objection to government showing pornographic films to jury when he was willing to stipulate that the films contained child pornography and had traveled interstate (only dispute was whether defendant knew materials depicted child engaged in sexually explicit conduct). District court overruled objection; Ninth Circuit reversed.

U.S. v. Hay (9th Cir. 2000) 231 F.3d 630. Allowing the jury, at their specific request, to view three of thirty-four exhibits was not unduly prejudicial. Unlike *Merino-Balderrama*, there was evidence that defendant had seen the images and the images were relevant to disprove defendant's defenses.

U.S. v. Dean, (D. Me. 2001) 135 F. Supp. 2d 207. Government sought to introduce a small portion of 120 images found on defendant's computer. Defendant argued that the images were highly inflammatory and were prejudicial under FRE 403. District court held that the images were the key to the charges, not improper propensity evidence. District court established rules for the manner in which the exhibits would be presented such as blocking out the genital portions of the images presented in open court.

U.S. v. Salinas (9th Cir. June 2003) 2003 WL 21419331. [unpublished] Affirmed admission of photos even though parties stipulated to "real kids" and interstate nexus.

8. SENTENCING ISSUES

8.1 Consecutive Sentences For Possessing Child Pornography

In re Duncan (App. 2 Dist. 1987) 189 Cal.App.3d 1348. Defendant duplicated photographs of children engaged in "sexual conduct" on at least two separate occasions so the imposition of sentence of two consecutive one-year terms did not constitute multiple punishment.

U.S. v. Fiske (E.D. Mich. 2003) 255 F.Supp.2d 694. Possession and receipt of the same material may be both charged in one indictment. However, if defendant is convicted of both, the government must elect between the counts prior to sentencing.

8.2 Registration as a Sex Offender

Penal Code section 290, subdivision (a)(2)(E) states that as to any offense a defendant can be ordered to register as a sex offender if the court finds at the time of conviction that the person committed the offense as a result of a sexual compulsion or for purposes

of sexual gratification. The court is required to state on the record the reasons for its findings and the reasons for requiring registration.

8.3 Conditions of Probation

U. S. v. Crandon (3rd Cir. 1999) 173 F.3d 122. As condition of supervised release, district court ordered that defendant “shall not possess, procure, or otherwise obtain access to any form of computer network, bulletin board, Internet, or exchange format involving computers” unless approved by probation. Court held that restriction on Internet access was reasonably related to defendant’s criminal activities, to the goal of deterring further criminal conduct and to protecting the public.

U.S. v. White (10th Cir. 1999) 244 F.3d 1199. As condition of supervised release, district court ordered that defendant: shall not possess erotica, or any other sexually explicit material, and shall not possess a computer with Internet access throughout his period of supervised release. Defendant argued that prohibiting his access to the Internet was not reasonably related to protecting the public. Tenth Circuit remanded for the district court to articulate the purpose and meaning of such a condition in light of the realities and rapidly changing technology of the Internet.

U.S. v. Fields (8th Cir. 2003) 324 F.3d 1025. Trial court imposed restrictions (1) on ownership of any photographic equipment including computers, scanner and fax; (2) on internet service in the defendant’s home. Court found that both restrictions were valid conditions of supervised release.

U.S. v. Ristine (8th Cir. 2003) 335 F.3d 692. Condition of supervised release that required permission from defendant’s probation officer to possess a computer, conditioned upon periodic unannounced examinations and installation of monitoring software, and that prohibited Internet service at defendant’s residence, was appropriate for defendant who admitted to exchanging images on the Internet and who attempted to arrange sexual relations with minors.

But see, U.S. v. Freeman (3rd Cir. 2003) 316 F.3d 386. Restriction on internet access invalid where there was no evidence that defendant used the internet to contact young children and solicit inappropriate sexual contact with them.

See also, U.S. v. Sofsky (2nd Cir. 2002) 287 F.3d 122 . Court vacated probation condition that P.O. approve all computer and internet use by defendant. Court found that in a child pornography case, a blanket ban curtailed too much commonplace computer usage.

But see, U.S. v. Deaton (E.D. Ark. 2002) 204 F. Supp.2d 1181. The court held that a complete ban on Internet use was “overly broad and not reasonably necessary” due to the importance of the Internet as a source of information and means of communication. Distinguishing the “egregious” conduct of the defendant in *Paul*, the court modified the sentence of defendant, who was convicted of possession, to prohibit him from using the Internet without permission from the probation dept.

See also, U.S. v. Cabot (2nd Cir. 2003) 325 F.3d 384. Court vacated condition that P.O. approve any computer and internet usage by the defendant.

U.S. v. White (10th Cir. 2001) 244 F.3d 1199. As condition of supervised release, dist. ct. ordered that def.: shall not possess erotica, or any other sexually explicit material, and shall not possess a computer with Internet access throughout his period of supervised release. Def. argued that prohibiting his access to the Internet was not reasonably related to protecting the public. 10th Circuit remanded for the dist. ct. to articulate the purpose and meaning of such a condition in light of the realities and rapidly changing technology of the Internet.

U.S. v. Angle (7th Cir. 2000) 234 F.3d 326. Court found that defendant was entitled to notice prior to sentencing of special condition to register as a sex offender.
Compare: U.S. v. Veal, 322 F.3d 1275 (11th Cir. 2003).

U.S. v. Paul (5th Cir. 2001) 274 F.3d 155. Restrictions on contact with minors, access to computers/Internet, access to photographic equipment and sex offender registration requirement upheld as special conditions of supervised release.

U.S. v. Guagliardo (9th Cir. 2002) 278 F.3d 868. Condition of supervised release prohibiting possession of “any pornography” requires greater specificity to give adequate notice. Condition of supervised release prohibiting residence within “close proximity” to places frequented by children is too vague - “close proximity” needs to be defined.

U.S. v. Lee (3rd Cir. 2003) 315 F.3d 206. Court upheld decision to impose random polygraph testing of a defendant who confessed to both cp and molestation. The court found that polygraph testing was allowable since the defendant could still invoke a 5th Amendment right not to answer a particular question. *See also U.S. v. Zinn* (11th Cir. 2003) 321 F.3d 1084 ; *U.S. v Taylor* (11th Cir. 2003) 338 F.3d 1280.

U.S. v. Dotson (4th Cir. 2000) 324 F. 3d 256 Potential use of penile plethysmograph and polygraph as conditions of supervised release were reasonably related to treatment and deterrence.

U.S. v. Walser (10th Cir. 2001) 275 F.3d 981. The court upheld the district court’s decision to prohibit Internet access without prior permission of the probation officer as a condition of release for defendant convicted of possession. In contrast to the prohibition it vacated in *White* (prohibiting possession of computer with Internet access was both too narrow and overly broad), the court held that the prohibition here accomplished the goal of restricting Internet use, while maintaining the balance between protecting the public and accomplishing sentencing goals.

U.S. v. Simmons (2nd Cir. 2003).343 F.3d 72. In a case where there was evidence that the defendant drugged both minors and adults for the purpose of sexually assaulting them

(and photographing the assaults), the court affirmed a prohibition on all pornographic material.

9. FORFEITURE AND DESTRUCTION OF CHILD PORNOGRAPHY

Forfeiture of matter depicting minor s engaging in or simulating sexual conduct may be accomplished pursuant to Penal Code section 312.3, subdivision (g). The prevalent view is that the matter is to be destroyed and it is not necessary to seek or obtain a criminal conviction prior to the entry of an order for the destruction. However, in light of the 2001 amendment to Penal Code section 502.01 (c) addressing forfeiture actions for crimes in violation of Penal Code section 311.1 – 311.5, 311.10, and 311.11, an action under Penal Code section 312.3 may allow forfeiture of equipment but destruction of the image.

As defined in Penal Code section 312.3, subdivision (g), matter includes “any recording, transcription or mechanical, chemical or electrical reproduction, or any other information, data, or image, including, but not limited to, any film, filmstrip, photograph, negative, slide, photocopy, videotape, video laser disc, computer hardware, computer equipment or any other computer-generated image that contains or incorporates in any manner any film or filmstrip.” With that stated we arrive at the issue of forfeiting (destroying) the suspect computer. Some jurisdictions, following the plain language of the statute, destroy the computer whose hard drive contains child pornography. Other jurisdictions have allowed the computer to be returned to the defendant after the “matter” has been wiped (destroyed) from the computer’s hard drive. Those jurisdictions who wipe create interesting logistical issues. Who pays for law enforcement to wipe the drives? Can selective wiping be accomplished or must the entire hard drive be reformatted? For those prosecutor’s in “wiping” jurisdiction, these issues should be discussed with the court prior to court’s order.

10. CONSTITUTIONALITY OF CALIFORNIA STATUTES

Hatch v. Superior Court (2000) 79 Cal.App.4th 663. (4 DCA, Div. 1). Facts: Defendant exchanged numerous communications via the Internet with an adult reporter posing as two 13-year-old girls. The communications included sexually explicit photographs and descriptions of sexual conduct. Defendant met one of the “girls” at a hotel pool and masturbated in front of the “girl”.

Held: (1) Distinguishing *American Libraries Association v. Pataki* (S.D.N.Y. 1997) 969 F. Supp. 160, the court held that Penal Code section 288.2 does not violate the “dormant” commerce clause, as the defendant is being charged with only intrastate activity. (2) Finding *Reno v. American Civil Liberties Union* (1997) 521 U.S. 844, inapplicable, the court held that section 288.2 does not violate the First Amendment, as section 288.2 is not directed as speech, but at the activity of attempting to seduce a minor. (3) Section 288.2, subd. (a), which prohibits the attempted seduction of minors with harmful matter “by any means” includes Internet communications.

People v. Hsu (2000) 82 Cal.App.4th 976. Facts: In several e-mail communications, defendant sent nude photographs to a police officer who was posing as a minor and solicited the officer to engage in various sexual acts.

Held: (1) Penal Code section 288.2, subd. (b) (using the Internet to send a minor lewd matter with the intent to seduce the minor), does not violate the Commerce Clause of the United States Constitution. (2) Penal Code section 288.2 subd. (b), does not violate the First Amendment of the United States Constitution. Although it is a content-based regulation, it survives it survives strict scrutiny analysis and is neither overbroad nor vague.

People v. Luera (2001) 86 Cal.App.4th 513. Facts: Acting on an informant's tip, the police executed a search warrant at defendant's home and found images of child pornography on his computer. Defendant was found guilty of possessing child pornography (Pen. Code, § 311.11).

Held: (1) Penal Code section 311.11's provision exempting films rated by the Motion Picture Association of America does not amount to an unconstitutional delegation of legislative authority. (2) Penal Code section 311.11 is not unconstitutionally vague. (3) Penal Code section 311.11 does not violate substantive due process. (4) Possession of child pornography is not protected by article I, section 1 of the California Constitution. (5) There was sufficient evidence the defendant knowingly possessed child pornography. (6) The trial court properly denied defendant's motion to quash the search warrant. (7) The trial court properly denied defendant's motion to disclose the informant's identity.

People v. Wiener (1994) 29 Cal.App.4th 1300. There is no legally protected privacy interest in the commercial distribution of obscene matter under the California Constitution. The regulation of such material is proper under Penal Code section 311.

11. CONSTITUTIONALITY OF CHILD PORNOGRAPHY PREVENTION ACT

11.1 Unconstitutionality

John D. Ashcroft v. Free Speech Coalition (2002) 122 S.Ct. 1389. CPPA's definition of child pornography is unconstitutional only as to the terms "appears to be" and "conveys the impression" as found in 18 U.S.C. § 2256(8)(B) and (D) respectively.

11.2 Post Free Speech Rulings

U.S. v. Bunnell (D. Me. 5/1/02) 2002 WL 927765. Title 18 U.S.C. 2256(8)(A) and (C) are unaffected by the ruling in *Free Speech*. Here, the court noted the severability provision that specifies if any provision of the Act fails because it, or any section, is held unconstitutional, the other terms of the Act, including other definitional sections, are unaffected.

U.S. v. Lowrance (A.F. Ct. Crim. App. 2002) 2002 WL 1822265. Defendant claimed that his pre-*Ashcroft* guilty plea as defective in light of *Ashcroft v. Free Speech*. The court held that representative samplings of the images included in the record supported defendant's guilty plea. There was no support in the record that defendant based his plea on a belief that the images depicted virtual children.

United States v. Kelly (7th Cir. 2003) 314 F.3d 908. Provisions of the CPPA found unconstitutional by the Supreme Court in *Free Speech* were severable from the remainder of CPPA and thus did not affect the constitutionality of prosecutions under sections of CPPA left intact by the Court. The Seventh Circuit also rejected the defendant's argument that *Free Speech* rendered the entire CPPA unconstitutional.

2004 CALIFORNIA CHILD PORNOGRAPHY AND ABUSE MATRIX¹

Crime Title	P.C. §	Punishment²	Elements and CALJIC # if they exist
Possession of Child Pornography	311.11(a)	<u>M – 1yr, \$2,500</u> F- if prior this section then 2/4/6 290	◆ knowingly possess or control any image; ◆ involving a person < 18 yr old; ◆ knowing that person is under 18; ◆ image shows person engaged in or simulating “sexual conduct” (see 311.4d)³ (note: see page 4 of this guide for definition of “sexual conduct”)
Distribution, Importation or the Intent to Distribute Child Porn	311.1(a)	<u>Wobbler</u> M – 1yr, \$1,000 F – 16/2/3 \$10,000 290	◆ imports porn into this state for sale or distribution; OR ◆ possess porn with intent to distribute, exhibit, exchange with others; OR ◆ posses porn and offers to distribute with the intent of distributing; OR ◆ person actually distributed, exhibited or exchanged child porn with others, and ◆ person had knowledge that the image is child porn as defined by 311.4(d) ◆ CALJIC 10.80
Distribution, Importation or the Intent to Distribute Child Porn <i>with commercial purpose</i>	311.2(b)	<u>F – 2/3/6 \$100,000</u> 290	◆ imports porn for sale or distribution OR ◆ possess porn with intent to exhibit, exchange or distribute to others ◆ person had knowledge that the image is child porn as defined by 311.4(d) ◆ the act was done for commercial consideration ◆ CALJIC 10.80
Imports or Possess with the Intent to Distribute to <i>Children</i>	311.2(d)	<u>F – 16/2/3, \$10,000</u> 290	◆ imports into the state any image OR ◆ possess or duplicates any image ◆ with the intent to distribute the images to an adult ◆ person had knowledge that the image is child porn as defined by 311.4(d)
Using a child to help distribute child porn	311.4(a)	<u>M – 180 days\$2,000</u> F – if prior this § or old section 311.3 = 16/2/3 290	◆ knowing that a person is <18, or reasonably should have known the person was a child ◆ uses or employs the child to assist in any of the acts described in § 311.2 (import or possession of porn with the intent to distribute)

¹ Author: Jeffrey Dort, Deputy District Attorney, San Diego, CA; email: jeff.dort@sdcda.org PLEASE write with any errors found or suggestions. Version 2.1

² **M** = Misdemeanor; **F**= Felony; **290** = 290 registration as a sex offender is required; **no 290**= no 290 sex registration is required – however, if defendant is convicted of a non-290 crime, you can use PC 290(a)(2)(D) to argue to the sentencing judge that a court can order PC 290 registration if the crime was sexually motivated.

³ No specific CALJIC on this, but you can use the language from the second paragraph of CALJIC 16.194.5; just strike paragraph #1 and rename.

Posing or Modeling of a child for Child Porn – Commercial Purposes ⁴	311.4(b)	<u>F – 3/6/8, \$10,000</u> MANDATORY PRISON per PC § 1203.065(a) 290	♦ person who uses a child, knowing he/she is a child < 18 years old or who reasonably should have known the person was a child ♦ promotes, employs, uses, persuades induces or coerces a child - OR ♦ a parent or guardian of a child < 18 who is under their control knowing permits that child to ♦ pose or model for any image or live performance of child porn (as defined in 311.4(d)) ♦ for commercial purposes³
Posing or Modeling of a child for Child Porn – Non-commercial purposes	311.4(c)	<u>F – 16/2/3 \$10,000</u> Note: if V is < 14 see PC 647.6(c)2 for enhancement to make punishment 2/4/6 years 290	♦ person who uses a child, knowing he/she is a child < 18 years old or who reasonably should have known the person was a child ♦ promotes, employs, uses, persuades induces or coerces a child - OR ♦ a parent or guardian of a child < 18 who is under their control knowing permits that child to ♦ pose or model for any image or live performance of child porn (as defined in 311.4(d)) –need NOT prove commercial purposes
Copy or Print Child Porn	311.3(a)	<u>M – 1yr, \$2,000</u> F – if prior 311 or 312 = 16/2/3 No 290	♦ duplicates or exchanges or prints ♦ any image ♦ of child porn (see 311.4d)
Advertising for Child Pornography	311.10	<u>Wobbler</u> M – 6 month, \$1,000 F – 2/3/4, \$50 K 290	♦ person advertising for sale or distribution any obscene matter ♦ person had knowledge that the image is child porn as defined by 311.4(d)
Distribution of Child Porn to a Child – <i>non-electronic means</i> <i>(if by computer see PC § 288.2(b))</i>	288.2(a)	<u>Wobbler –</u> M – 180 days, \$1,000 F – 16/2/3 \$10,000 -2 nd offense = F <i>290 ONLY IF conviction under this § was as a F</i>	♦ A person knowingly distributed, sent, exhibited or offered, by any means, including live or recorded telephone message, any harmful matter to a minor; ♦ That person knew that the recipient of the message was a minor (or failed to exercise reasonable care to ascertain the true age of the recipient); ♦ That person did so with the specific intent to arouse or gratify the lust or sexual desires of that person or minor; and ♦ That person also specifically intended to seduce the minor. ♦ CALJIC 10.58 and “harmful matter” is defined in PC § 313

⁴ Commercial Purpose does NOT just mean selling, it can mean that the defendant intended to trade the child porn in the future, and thereby use the porn he had to better his collection. “The defendant need only intend to trade the pornography for a commercial purpose at some point in the future”. If defendant made the photos and posted them to the Internet with the purpose to trade them he violated PC § 311.4(b). No monetary exchange required. See People v. Cochran (2002) 28 Cal.4th 396, 398-407

Distribution of Child Porn to a Child by <i>use of electronic means</i>	288.2(b)	<u>Wobbler –</u> M – 180 days, \$1,000 OR F 16/2/3 \$10,000 -2 nd offense = F 290 ONLY IF conviction under this § was as a F	♦ A person knowingly distributed, sent, exhibited or offered to distribute or exhibited by email, Internet, or other commercial online service, any harmful matter to a minor; ♦ That person knew that the recipient of the message was a minor (or failed to exercise reasonable care to ascertain the true age of the recipient); ♦ That person did so with the specific intent to arouse or gratify the lust or sexual desires of that person or minor; and ♦ That person also specifically intended to seduce the minor. ♦ CALJIC 10.58 and “harmful matter” is defined in PC § 313
Annoy or Molest of a Child (< 18)	647.6(a)	<u>M – 1yr, \$1,000</u> F -16/2/3: if prior this §; or F – 2/4/6 if prior F this § or 288, 311.4 290	♦ A person engaged in acts or conduct directed at a child under 18 which would unhesitatingly disturb or irritate a normal person if directed at that person; and ♦ The acts or conduct were motivated by an unnatural or abnormal sexual interest in the victim. ♦ CALJIC 16.440
Solicitation to commit sex crime	653f(c)	<u>F – 2/3/4</u> 290	♦ Person solicited another to commit 261(a)2, 289, 288(a)(c), 264.1 or 288; ♦ At the time of the solicitation, the solicitor had the specific intent that the crime above would be committed; ♦ The soliciting message was received by the intended recipient / solicitee. ♦ CALJIC 6.35
Lewd act with a Child under 14	288(a)	<u>F: 3/6/8, \$10,000</u> PRISON PRESUMPTIVE IF Δ used child porn to accomplish the 288 see PC § 203.066(a)9 ⁵ but see PC 1203.066(c) 290	♦ Person touched the body of a child; ♦ Child was under 14 years of age; and ♦ Touching was done with the specific intent to arouse or gratify the lust of the child or the person ♦ CALJIC 10.41
Forcible Lewd act with a child under 14	288(b)	<u>F-3/6/8, \$10,000</u> PRISON MANDATORY per PC § 1203.066 (a) 1 or (a) 9 290	♦ Person touched the body of a child; ♦ Child was under 14 years of age; ♦ Touching was done with the specific intent to arouse or gratify the lust of the child or the person; and ♦ Touching was done by the use of force, violence, duress, menace, or fear of immediate and unlawful bodily injury on the child or another person. ♦ CALJIC 10.42

⁵ 1203.066 describes different allegations, some that are prison mandatory, others such as (a)9, the judge can still give probation if factors found at 1203.066(c) are present.

Lewd act with a Child 14 or 15 yr old	288(c)	<u>Wobbler:</u> M – 1yr, \$1,000 F – 1/2/3 290	◆ Person touched the body of a child; ◆ Child was 14 or 15; and ◆ Touching was done with the specific intent to arouse or gratify the lust of the child or the person. ◆ CALJIC 10.42.5
Providing Child for Sexual Abuse – Procurement	266j	<u>F-3/6/8, \$15,000</u> PRISON MANDATORY see PC § 1203.065(a) 290	◆ Person intentionally transported, provided or made available a child under the age of 16 to another person (or offered the same); ◆ The provider of the child, gave/transported/provided with the specific intent that a lewd or lascivious act be perpetrated upon the child (or offered with the specific intent that a lewd act be committed.) ◆ CALJIC 10.72
Aggravated Sexual Assault of Child	269(a)	<u>F – 15 years to life</u> 290	◆ A person committed 261(a)2, 264.1, 286 by force⁶, 288a by force, 289a; ◆ The victim was under 14 years of age; and ◆ The victim was 10 or more years younger than the perpetrator. ◆ CALJIC 10.55
Child Porn definition SEXUAL CONDUCT DEFINITION” for the purpose of the 311 sections	311.4(d)	definition § only	◆ depiction of a person < 18 yr old, engaged in sexual conduct, defined as : ◆ intercourse or touching between genital/oral/anal areas; or ◆ can be same sex, opposite or animal; or ◆ penetration of vaginal or rectum; or ◆ masturbation; or ◆ sadism or masochism; or ◆ exhibition of genitals or pubic or rectal area⁷ <i>-but must be for the purpose of sexual stimulation of the viewer; or</i> ◆ defecation or urination; or ◆ any lewd or lascivious act as defined by PC 288.
Defenses to Porn Charges	311.8	Definition § only	It “shall be a defense to a violation of this chapter (PC §’s 311-312)” if ◆ the act was done in aid of legitimate scientific purposes ◆ the act was done in aid of legitimate educational purposes If the act was sending porn to a child, it shall be a defense if the defendant restricted access of the porn by reasonably ascertaining that the person was 18 years or older or using a credit card.

⁶ Force for this section means the crime was committed by force, violence, duress, menace, or fear of immediate and unlawful bodily injury on the victim or another person. Per PC 269; and force has been defined as “Physical force substantially different from or substantially greater than that necessary to accomplish the lewd act itself.” See People v. Cicero (1984) 157 Cal.App. 3d 465, 474. NOTE: if your victim is young (10 or younger) and is the natural daughter of the molester/defendant, use People v. Cochran (2002) 103 Cal.App.4th 8 to argue that duress is present using the totality of the circumstances, “Nonetheless, as a factual matter, when the victim is an young as this victim [age 9] and is molested by her father in the family home, in all but the rarest cases duress will be present.” Cochran at p. 16.

⁷ See People v. Spurlock (2004) 114 Cal.App.4th 1122, 1131 for the “Dost” Factors that can be utilized if you have borderline type pictures, but the defendant has them for child porn purposes. The “Dost” factors look at the characteristics of the photos (scene, people, positions, etc) can be characterized as child pornography.

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